

Court No. - 39

Case :- WRIT - C No. - 20753 of 2014

Petitioner :- Ram Asrey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Punit Kumar Gupta, Rajat Kumar Shukla

Counsel for Respondent :- C.S.C., Nripendra Mishra

Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

We have heard Sri Punit Kumar Gupta, learned counsel for the petitioner, learned Standing Counsel for the respondent no. 1 and Sri Nripendra Mishra, learned counsel for the respondent nos. 2, 3 and 4 who are Power Corporation Limited and its officers.

By means of this writ petition, the petitioner seeks for issue of a writ in the nature of mandamus directing the respondents not to recover the dues amount and further to decide the application of the petitioner made under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Learned counsel for the Power Corporation has submitted that the petitioner had earlier filed a suit for injunction which was dismissed and his appeal against the said order was also dismissed, wherein U.P. Power Corporation in its written statement had taken its defence. He states that in so far as the application under Clause 6.5 is concerned, there are certain conditions, which have to be fulfilled by the petitioner and in case the same are fulfilled, there is no reason for the competent authority to not decide the application made by the petitioner under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid submission, we find that the petitioner had earlier filed a suit for injunction against the Power Corporation, which was dismissed and his appeal was also dismissed. It appears that thereafter he approached the Power Corporation vide his application dated 21.6.2013 purported to be filed under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The said application appears to be pending before the competent authority and has not been decided, as has been stated by the petitioner in this writ petition.

In such circumstances, we find it appropriate to dispose of the writ petition finally by leaving it open to the competent authority to

consider and decide the application made by the petitioner under Clause 6.5 of the U.P. Electricity Supply Code, 2005 in accordance with law, within the time stipulated under the said Clause.

It is made clear that we have not expressed any opinion on merits of the claim of the petitioner which has to be done by the competent authority under the said Clause.

The writ petition is finally disposed of.

No order is passed as to costs.

Order Date :- 10.4.2014

Rmk.